

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #11	CCRB Case #: 201605977	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 07/06/2016 10:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/6/2018	Precinct: 67
Date/Time CV Reported Tue, 07/12/2016 12:21 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/12/2016 12:21 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eric Stoll	30364	954354	067 PCT
2. SGT Tonica Corlette	5056	933977	067 PCT
3. POM Jonathan Colon	28889	952608	067 PCT
4. POF Sophia Rodriguez	09718	937416	067 PCT
5. An officer			067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Colon	Abuse: Police Officer Jonathan Colon entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . POM Eric Stoll	Abuse: Police Officer Eric Stoll entered § 87(2)(b) in Brooklyn.	B . Substantiated
C . SGT Tonica Corlette	Abuse: Sergeant Tonica Corlette entered § 87(2)(b) in Brooklyn.	C . Substantiated
D . POF Sophia Rodriguez	Abuse: Police Officer Sophia Rodriguez entered § 87(2)(b) in Brooklyn.	D . Substantiated
E . SGT Tonica Corlette	Force: At § 87(2)(b) in Brooklyn, Sergeant Tonica Corlette hit § 87(2)(b) against a wall.	E . Unsubstantiated
F . SGT Tonica Corlette	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Tonica Corlette threatened to damage § 87(2)(b)'s property.	F . Exonerated
G . POM Jonathan Colon	Abuse: At § 87(2)(b) in Brooklyn, Jonathan Colon threatened to damage § 87(2)(b)'s property.	G . Exonerated
H . POM Jonathan Colon	Force: At § 87(2)(b) in Brooklyn, Police Officer Jonathan Colon used physical force against § 87(2)(b).	H . Exonerated
I . SGT Tonica Corlette	Force: At § 87(2)(b) in Brooklyn, Sergeant Tonica Corlette used physical force against § 87(2)(b).	I . Exonerated
J . An officer	Force: At § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b).	J . Officer(s) Unidentified
K . POM Jonathan Colon	Force: At the 67th Precinct stationhouse, Police Officer Jonathan Colon used physical force against § 87(2)(b).	K . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
L . POM Jonathan Colon	Abuse: At the 67th Precinct stationhouse, Police Officer Jonathan Colon threatened § 87(2)(b) with the use of force.	L . Unsubstantiated

Case Summary

On July 12, 2016, § 87(2)(b) called the CCRB to file this complaint. § 87(2)(b) was not home during this incident, but her husband, § 87(2)(b) her son, § 87(2)(b) § 87(2)(b)'s wife, § 87(2)(b) and § 87(2)(b)'s sister, § 87(2)(b) were home.

On July 6, 2016, at approximately 10:04PM, Sgt. Tonica Corlette, PO Eric Stoll, PO Jonathan Colon, and PO Sophia Rodriguez, all from the 67th Precinct, arrived at § 87(2)(b) in Brooklyn, a converted two-family house with two apartments on the first floor and one apartment on the second floor. § 87(2)(b) and § 87(2)(b) reside in the second floor apartment. The officers arrived with an open Investigation Card (I-Card) for § 87(2)(b) which cited probable cause to arrest him for felonious criminal contempt.

PO Colon and PO Stoll entered the house, followed by Sgt. Corlette and PO Rodriguez (**Allegations A through D**). The officers stood in a hallway on the first floor, and after announcing their presence, § 87(2)(b) and § 87(2)(b) looked over the banister from the second floor. PO Stoll and PO Colon spoke to § 87(2)(b) and walked up the staircase to the second floor landing. PO Stoll and PO Colon explained to § 87(2)(b) that he was being taken to the 67th Precinct stationhouse for violating an order of protection. § 87(2)(b) refused to leave until he spoke with his lawyer. § 87(2)(b) and § 87(2)(b) heard the verbal exchange from elsewhere on the second floor and approached the landing.

§ 87(2)(b) and his family members spoke with the officers, sometimes growing loud. After several minutes, § 87(2)(b) entered his bedroom and closed the door. PO Stoll and PO Colon stood outside the door, ordering § 87(2)(b) to open it. § 87(2)(b) and § 87(2)(b) approached the door. § 87(2)(b) told § 87(2)(b) to exit the bedroom and go with the officers. Sgt. Corlette approached and allegedly pushed § 87(2)(b) out of her way (**Allegation E**). Sgt. Corlette and PO Colon, both identified via investigation, told § 87(2)(b)'s family members that if § 87(2)(b) did not open the door, the officers would call the NYPD's Emergency Services Unit (ESU) to break it down (**Allegations F and G**). Soon after, § 87(2)(b) opened the door, and PO Stoll, PO Colon, and Sgt. Corlette entered the bedroom.

Sgt. Corlette and PO Colon allegedly pushed § 87(2)(b) onto his bed (**Allegations H and I**), rear handcuffed him, and escorted him to the top of the staircase, where PO Colon and PO Stoll allegedly pushed him from the top step (**Allegations J and K**), causing § 87(2)(b) to fall down three of the stairs, but resulting in no injury.

§ 87(2)(b) was escorted outside and transported to the 67th Precinct stationhouse. There, during arrest processing, § 87(2)(b) removed his shoelaces, but refused to have his sewn-in drawstring cut out of his pants. In response, PO Colon allegedly pushed § 87(2)(b) into a wall (**Allegation L**) and allegedly threatened to Taser § 87(2)(b) (**Allegation M**).

§ 87(2)(b) was charged with § 87(2)(b) . [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

There is no video evidence in this case.

This case was delayed due to it taking over one month to obtain sworn statements from the four civilians involved in this complaint.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- As of September 23, 2016, neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York regarding this incident. (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 07), § 87(2)(b) (Board Review 08), § 87(2)(b) (Board Review 09), § 87(2)(b) (Board Review 10), and § 87(2)(b) (Board Review 11).
- Sgt. Corlette, a 12 year member-of-service, has two prior CCRB complaints filed against her with a total of six allegations, one of which was substantiated. In CCRB case number 201401347, the Board recommended that Sgt. Corlette receive formalized training for issuing a retaliatory summons. Instead, the NYPD issued her instructions. § 87(2)(g)
[REDACTED]
- This is the first CCRB complaint filed against PO Colon, a four year member-of-service, and PO Stoll, a three year member-of-service.
- PO Rodriguez, an 11 year member-of-service, has one prior CCRB complaint filed against her containing one allegation, which was not substantiated, § 87(2)(g)
[REDACTED]

Potential Issues

At the time of this incident, three individuals resided on the first floor of § 87(2)(b) and may have witnessed part of this incident. However, the second floor occupants could not identify these individuals by name or contact information, and the first floor occupants moved out of the residence by the time this complaint was filed. Database searches were conducted in the hopes of identifying these potential witnesses, but proved to be unsuccessful.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged in his initial phone statement that officers threatened to call ESU to break down § 87(2)(b)'s bedroom door if he did not open it. § 87(2)(b) did not specify which officers made this statement. However, both Sgt. Corlette and PO Colon acknowledged that they made this statement. § 87(2)(g)
[REDACTED].

§ 87(2)(b) alleged that PO Colon pushed him at the top of the staircase, while § 87(2)(b) alleged that PO Stoll did so. § 87(2)(b) testified that PO Stoll pushed § 87(2)(b)'s left shoulder with his open hands, causing § 87(2)(b) to fall down approximately three stairs and hit a wall. § 87(2)(b) testified that § 87(2)(b) did not

willingly move towards the stairs and that all four officers had to participate in getting him to move. She described the act of moving § 87(2)(b) down the staircase as “taking a refrigerator down the stairs,” and said it involved the officers pushing and pulling him. § 87(2)(b) did not witness this aspect of the incident.

PO Stoll, PO Colon, and PO Rodriguez all testified that at the top of the staircase, § 87(2)(b) lunged forward in an attempt to intentionally fall down the stairs. PO Stoll and PO Colon stated that PO Colon shouted to PO Stoll for assistance escorting § 87(2)(b) down the staircase and all four officers testified that § 87(2)(b) was lifted up by his extremities by both PO Stoll and PO Colon, and brought downstairs in this position. Sgt. Corlette and PO Rodriguez denied seeing any officer push § 87(2)(b) at the top of the staircase.

§ 87(2)(g)

Allegation not pled

§ 87(2)(g)

Allegation A –Abuse: Police Officer Jonathan Colon entered § 87(2)(b) in Brooklyn.

Allegation B –Abuse: Police Officer Eric Stoll entered § 87(2)(b) in Brooklyn.

Allegation C –Abuse: Sergeant Tonica Corlette entered § 87(2)(b) in Brooklyn.

Allegation D –Abuse: Police Officer Sophia Rodriguez entered § 87(2)(b) in Brooklyn.

§ 87(2)(b) is a two-story private house which has been converted into three single-family residences. A locking front door with a large glass insert opens into a small vestibule, where another locking door with a large glass insert opens into the first floor hallway. A staircase leads to the second floor landing, where members of § 87(2)(b)'s family store various personal belongings. Past this landing is a door that leads into the family's apartment. A second door, which is accessible from the landing, leads into a separated bedroom, which § 87(2)(b) and § 87(2)(b) sleep in.

It is undisputed that Sgt. Corlette, PO Stoll, PO Colon, and PO Rodriguez arrived at § 87(2)(b) on July 6, 2016 with an I-Card issued on § 87(2)(b) (Board Review 12) and that the officers did not possess an arrest warrant or bench warrant for § 87(2)(b) (Board Review 13) or a search warrant for § 87(2)(b) (Board Review 14). The I-Card cited probable cause to arrest § 87(2)(b) for felonious criminal contempt. It is also undisputed that the front door and vestibule door of the house were unlocked and propped open when the officers arrived.

All four officers acknowledged entering the house without making visual or verbal contact with anyone inside. Sgt. Corlette testified (Board Review 15) that the officers entered the house because they possessed an I-Card and wanted to make sure everything was okay, given that the front doors had been left wide open. Nothing else led her to suspect that something was wrong inside the house.

PO Stoll testified (Board Review 16) that both front doors were open, so he entered the house. PO Colon testified (Board Review 17) that, without discussion among the officers, they entered the house because it was the next location for them to visit and the doors were open. PO Stoll testified that prior to entering, the officers were in possession of a warrant. In describing the difference between an I-Card and a warrant, PO Stoll stated, “I-Card is just the term that we use for a warrant, an arrest warrant.” PO Colon was “not 100 percent sure” of the difference between an I-Card and an arrest warrant.

PO Stoll and PO Colon also testified that the officers were further in possession of information that led them to believe that § 87(2)(b) was home, specifically his anticipated departure for military training the following morning. § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

PO Colon stated that he first knew that someone was inside the house after he entered, announced his presence, and witnessed § 87(2)(b) look over the second floor banister.

PO Rodriguez testified (Board Review 18) that PO Colon, PO Stoll, and Sgt. Corlette entered the house before her while she put the officers’ location over the radio, and that once she did that, since those officers were already inside of the house, she followed behind them approximately one minute later.

In a two-story rooming house, the staircase and hallway outside of one’s room constitute elements of one’s “home.” People v. Lott, 102 A.D.2d 506 (1984) (Board Review 19). Moreover, when access to a hallway is limited to residents of a building and its guests, and a locking front door ensures the security of this hallway, the hallway is considered part of the residents’ “dwelling.” People v. McCurdy, 86 A.D.2d 493 (1982) (Board Review 20).

An I-Card grants an officer probable cause to arrest an individual, but not justification to cross the threshold of a residence without a warrant. People v. Mendoza, 49 Misc. 3d 1007 (2015) (Board Review 21). In Mendoza, officers waited six days from the issuance of the I-Card to enter a dwelling and arrest the wanted individual, which was found to suggest a lack of imminent danger. That court found that had exigency existed, the officers should have obtained an arrest warrant or a no-knock search warrant for the location, and that officers may not forego long-available legal procedures and then claim their arrival to a location created exigency and a “sudden” need to enter without one of these legal documents.

Absent consent, an emergency (People v. Greenleaf, 222 A.D.2d 838 (1995)) (Board Review 22), hot pursuit (People v. Skinner, 284 A.D.2d 906 (2001-4th Dept.)) (Board Review 23), or exigent circumstances (Payton v. New York, 455 U.S. 573 (1980) (Board Review 24), People v. McBride, 14 N.Y.3d 440 (2010) (Board Review 25)), officers may not cross the threshold of a home in order to make a warrantless arrest. In defining hot pursuit, when an officer initiates a probable cause arrest in a public area, they may enter a private dwelling without a warrant if the subject of the arrest flees into the private dwelling to avoid arrest. People v. Skinner, 284 A.D.2d 906 (2001-4th Dept.)

In the McBride test, factors to be considered when establishing exigency include: (1) the gravity or violent nature of the alleged offense; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) a strong reason to believe that the suspect is in the premises being entered; (5) the likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** through **D** be closed as **substantiated**.

Allegation E –Force: At § 87(2)(b) in Brooklyn, Sergeant Tonica Corlette hit § 87(2)(b) against a wall.

§ 87(2)(b) testified (Board Review 26) that after § 87(2)(b) opened his bedroom door and while PO Stoll was inside of the bedroom handcuffing § 87(2)(b) Sgt. Corlette walked toward the bedroom and pushed § 87(2)(b) out of her way and into the wall next to the door. § 87(2)(b) who was uninjured, stated that in response, she yelled that she was pregnant. § 87(2)(b) testified (Board Review 27) that § 87(2)(b) told Sgt. Corlette to let her talk to him and that Sgt. Corlette instead pushed § 87(2)(b) in her stomach, causing § 87(2)(b) s back to make contact with the wall.

§ 87(2)(b) testified (Board Review 28) that when § 87(2)(b) entered his bedroom and closed the door behind him, Sgt. Corlette fell backwards and bumped her back into the front of § 87(2)(b) who fell backwards as a result. At this point, § 87(2)(b) stated that she was pregnant.

§ 87(2)(b) (Board Review 29) testified that Sgt. Corlette told § 87(2)(b) to move out of the way because she was pregnant, and that Sgt. Corlette made a motion with her arm indicating for § 87(2)(b) to move aside, but that Sgt. Corlette did not make physical contact with § 87(2)(b)

Sgt. Corlette corroborated that § 87(2)(b) stood by the bedroom door and told Sgt. Corlette to let her convince § 87(2)(b) to open it. Sgt. Corlette said she ordered § 87(2)(b) to move out of the way, but she denied making any physical contact with her. PO Stoll denied that Sgt. Corlette made any physical contact with § 87(2)(b) PO Rodriguez denied seeing Sgt. Corlette push § 87(2)(b) and PO Colon testified that § 87(2)(b) did not interact with Sgt. Corlette at all during this aspect of the incident.

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b) It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F –Abuse: At § 87(2)(b) in Brooklyn, Sergeant Tonica Corlette threatened to damage § 87(2)(b) s property.

Allegation G –Abuse: At § 87(2)(b) in Brooklyn, Police Officer Jonathan Colon threatened to damage § 87(2)(b) s property.

§ 87(2)(b) alleged that after § 87(2)(b) entered his bedroom and closed the bedroom door, unspecified officers told him that if § 87(2)(b) did not open his bedroom door, they would call ESU to break it down.

Sgt. Corlette and PO Colon both acknowledged making this statement because § 87(2)(b) was considered a “barricaded perp” after closing the door.

Officers must effect an arrest professionally and reasonably and, in this pursuit, may not destroy property in an excessive or unnecessary manner. Onderdonk v. New York, 170 Misc. 2d 155 (1996) (Board Review 30).

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as **exonerated**.

Allegation H –Force: At § 87(2)(b) in Brooklyn, Police Officer Jonathan Colon used physical force against § 87(2)(b)

Allegation I –Force: At § 87(2)(b) in Brooklyn, Sergeant Tonica Corlette used physical force against § 87(2)(b)

It is undisputed that after PO Colon, Sgt. Corlette, and PO Stoll entered § 87(2)(b)'s bedroom to arrest him, § 87(2)(b) ended up positioned face-down on his bed. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that PO Colon grabbed § 87(2)(b)'s left arm from behind and pushed him on the left side of his torso, causing § 87(2)(b) to fall onto his bed. § 87(2)(b) was rear handcuffed and was pulled to his feet by PO Colon and Sgt. Corlette. § 87(2)(b) and § 87(2)(b) denied that § 87(2)(b) moved his body or otherwise resisted arrest. § 87(2)(b) sustained no injury as a result of this interaction.

§ 87(2)(b) who stood outside of the bedroom but had a clear view inside, testified that Sgt. Corlette and PO Colon, identified via investigation, pushed § 87(2)(b) onto his bed and that § 87(2)(b) then struggled with the officers by pulling his hands away as they tried to handcuff him. Conversely, § 87(2)(b) testified that § 87(2)(b) was rear handcuffed while still in a standing position.

§ 87(2)(g) PO Colon, Sgt. Corlette, and PO Stoll all testified that § 87(2)(b) pulled away from PO Colon and Sgt. Corlette when they grabbed his arms. Sgt. Corlette and PO Stoll stated that § 87(2)(b)'s own movement caused him to fall onto the bed. PO Colon did not recall if § 87(2)(b) fell due to momentum or having been pushed. PO Colon, Sgt. Corlette, and PO Stoll also stated that while § 87(2)(b) was being handcuffed on his bed, he pulled his arms away from the officers and tucked them underneath his body.

PO Rodriguez denied being in the bedroom at this time and denied having a view of this interaction.

NYPD Patrol Guide, Section 221-01 states that an officer must apply no more than the reasonable force necessary to gain control (Board Review 31).

§ 87(2)(g)

It is therefore recommended that **Allegations H and I** be closed as **exonerated**.

Allegation J –Force: At § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **officer unidentified**.

Allegation K –Force: At the 67th Precinct stationhouse, Police Officer Jonathan Colon used physical force against § 87(2)(b)

Allegation L –Abuse: At the 67th Precinct stationhouse, Police Officer Jonathan Colon threatened § 87(2)(b) with the use of force.

It is undisputed that at the 67th Precinct stationhouse, § 87(2)(b) refused to remove the drawstring from his pants prior to being lodged in a holding cell. § 87(2)(b) alleged that in response, PO Colon pushed § 87(2)(b) in his chest with his open right hand and threatened to Taser him. § 87(2)(b) said he was concerned that he would lose his balance and hit his head, so he purposely fell backwards and hit his back against a wall. § 87(2)(b) sustained no injury as a result of this interaction.

PO Colon testified that he used a knife to cut the drawstring from § 87(2)(b)'s pants. To do so, given that § 87(2)(b) was not handcuffed at the time, PO Colon requested assistance from PO Stoll, identified via investigation, and an unidentified officer. Those officers held § 87(2)(b)'s arms and walked him toward a wall approximately three feet behind him. However, PO Colon denied that he or any other officer pushed § 87(2)(b) and denied that he or any other officer threatened to Taser § 87(2)(b).

PO Stoll testified that § 87(2)(b) began yelling after being told that his drawstring would be cut and that he and another unidentified officer approached to assist. PO Stoll stated that he cut the drawstring while PO Colon and the third officer held § 87(2)(b)'s arms. He denied seeing PO Colon push § 87(2)(b) and denied hearing PO Colon threaten to Taser him.

Sgt. Corlette testified that she was in a position to witness this aspect of the incident, but she denied seeing PO Colon push § 87(2)(b) and denied hearing PO Colon threaten to Taser him. PO Rodriguez testified that she went to the second floor of the stationhouse immediately after arriving, and that she did not witness this aspect of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegations K and L** be closed as **unsubstantiated**.

Squad: 11

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date